



GENERAL TERMS AND CONDITIONS „N26 Maestro Card“ from the N26 Bank SE

(Version 1.2., Date: 24.01.2022)

I. General Terms

1. Forms of Use (Functions)

1.1

The N26 Maestro Card (“Maestro Card”) may only be used for the following functions:

Cash withdrawals at ATMs within the international Maestro system (“Cash Withdrawals”);

For cashless payments at trade and service companies using electronic cash terminals within the international Maestro system (“Card Payments” ; Cash Withdrawals and Cash Payments are collectively “ Transactions ”).

1.2

Domestically and internationally, these payment terminals and ATMs are marked with the Maestro logo.

The Maestro Card has no additional functions (neither company nor bank generated). In particular, it does not have any money card function.

2. Related Account

The Maestro Card is always related to a specific N26 current account (hereinafter “Account”) that is held at the N26 Bank SE (the “Bank”) as the card-issuing bank for the account holder (the “Customer”). The Maestro Card is respectively valid for the Account at the Bank that is stated on it.

3. Ownership

3.1

The Maestro Card remains the property of the Bank.

3.2

The Maestro Card is not transferrable to a different Customer.

4. Fees

4.1

Fees owed to the Bank by the Customer are listed in the Bank’s “Schedule of Fees and Services”. These fees will be charged to the Account for which the Maestro Card is issued.

4.2

The Customer will be notified in writing of changes in fees at the latest two months prior to their entry into force. In the event the Customer has agreed to electronic communications with the Bank as part of their business relationship (e.g. online banking), such changes may also be communicated to the Customer in this manner. The Customer is deemed to have given consent if he or she has not communicated an objection prior to the proposed date of their coming into force. The Bank specifically informs the Customers of this deemed consent in its offer.

4.3

In the event changes in fees are proposed to the Customer, he or she may terminate the business relationship with immediate effect and at no charge prior to the proposed date that the changes come into force. The Bank specifically informs the Customers of this right of termination in its offer.

5. Customer's Duties of Care

The Customer is subject to the following duties of care in particular::

5.1 Signature

Upon receipt of the Maestro Card, the Customer is required to sign it immediately in the location provided.

5.2 Safekeeping

The Maestro Card and the Maestro PIN must be carefully kept separately from each other in order to prevent the Maestro Card from becoming lost or being improperly used in the Maestro system. In particular, the Maestro Card may not be left unattended in a vehicle.

5.3 Maestro PIN Secrecy

The Maestro PIN must be kept secret and the Customer may not disclose it to third parties under any circumstances. In particular, the Maestro PIN may neither be noted on the Maestro Card nor may it be kept with the Card, even in a modified form because any person who knows the Maestro PIN and comes into possession of the Maestro Card is able to dispose of funds in the account stated on the Maestro Card.

5.4 Changing the Maestro PIN

The Customer is advised to select a new four-digit Maestro PIN which then immediately replaces the previously valid Maestro PIN. This change may be made as often as desired and at any time. The Customer may determine the Maestro PIN him or herself using the N26 app following receipt of the Maestro Card. Maestro PINs changed by the Customer may not consist of easily-guessed numbers (e.g. telephone number, date of birth, vehicle number plate, etc.).

5.5 Notification and Reporting Duties

(1) In the event the Customer discovers that the Maestro Card has been lost, stolen or that the Maestro Card or Maestro PIN has been used improperly or otherwise used without authorization, he or she must inform the Bank without delay ("Blocking Notification"). For this purpose, the Customer may report the card as stolen in the N26-App. The Customer can submit the Blocking Notification to the central blocking hotline at any time (tel. 116 116 domestically and + 49 116 116 internationally [if applicable different international area code]). In this case, blocking the card is only possible if the name of the Bank, if possible with the bank sort code, and the account number are stated. The central blocking hotline blocks all Maestro Cards issued for the account concerned from further use at ATMs or electronic terminals. In order to limit the block on the lost Maestro Card, the

Customer must contact the Bank, if possible the branch where the account is held. The Customer is required to report all thefts or misuse to the police without delay.

(2) If the Customer suspects that another person has gained unauthorised possession of his or her Maestro Card, that the card has been used improperly or there has been any other unauthorised use of the Maestro Card or Maestro PIN, he or she must also submit a Blocking Notification without delay.

(3) If the Maestro Card is equipped with a TAN generator for online banking or a signature function, blocking the Maestro Card also results in blocking the online banking function.

(4) The Customer is required to inform the Bank without delay after he or she discovers a Transaction that has been conducted without authorization or in error.

6. Coverage Obligation

6.1

The Maestro Card may only be used if the Account has necessary cover (account balance or overdraft facility (collectively referred to as "Credit Limit")). Even in the event the Customer does not comply with this limit in executing Transactions, the Bank is authorised to demand the reimbursement of costs resulting from use of the Maestro Card.

6.2

Posting such Transactions to the Account results in a tolerated overdraft in so far as an overdraft facility has not been granted. Interest is due in such cases in accordance with the N26 current account terms and conditions.

7. Bank's Right of Debit

7.1

The Bank is authorised to debit the Account for all amounts resulting from the use of the Maestro Card.

7.2

The Bank's debit right continues without restriction even in the event of disputes between the Customer and third parties.

7.3

The Account will be debited in euros, even if the Customer uses the Maestro Card for Transactions not denominated in euros. The Bank's Schedule of Fees and Services provides provision to determine the exchange rate for Transactions denominated in a foreign currency. Any change in the reference exchange rate referred to in the currency conversion provisions becomes effective immediately and without prior notice to the Customer.

8. Validity and Card Renewal

8.1

The Maestro Card is valid until the end of the date indicated on the card. The Maestro Card will be replaced automatically with a new Maestro Card prior to its expiry date provided that business has been conducted properly and the Customer does not expressly object to it.

8.2

The Bank is authorised to request the return of the old Maestro Card upon issuance of the new card or, at the latest, upon expiry of the old Maestro Card. If authorization to use the Maestro Card lapses at an earlier date (e.g. closure of the account or termination of the card agreement), the Customer is required to return the Maestro Card to the Bank without delay.

9. Termination

9.1

Notice of termination may be given at any time. Revocation of a power of attorney for a Customer (pursuant to No I. 3) has the same effect as termination.

9.2

After termination, the Maestro Card must be returned to the Bank immediately and without it being requested. If the Customer revokes the power of attorney over an account, he or she is responsible for the return of the Maestro Card issued to the Customer by the Bank.

9.3

The premature request for or return of the Maestro Card does not create a right to reimbursement of any accruing annual fee.

9.4

Despite termination, the Bank retains the right to debit all amounts from the Account attributed to Transactions conducted prior to the actual return of the Maestro Card.

10. Changes to the Terms and Conditions

Changes to these General Terms and Conditions will be communicated to the Customer in writing prior to the proposed date they come into force. In the event the Customer has agreed to electronic communications with the Bank as part of their business relationship (e.g. online banking), such changes may also be communicated to the Customer in this manner. The changes proposed shall only become effective upon the Customer's consent.

11. General Terms and Conditions

In all other cases, the Bank's General Terms and Conditions apply.

II. Maestro Card as cash Withdrawal and Payment Card

1. Cash Withdrawals

The Maestro Card may be used at any time to withdraw cash at correspondingly designated domestic and foreign ATMs using the Maestro PIN or by signing a transaction receipt at correspondingly designated providers.

2. Card Payments

The Maestro Card may be used at any time to pay for goods and services by using the Maestro PIN or by signing a transaction receipt at correspondingly designated domestic and foreign providers..

3. Maestro PIN (= Personal Identification Number)

3.1

After receipt of the card, the Customer selects a four-digit Maestro PIN using the N26 app. Maestro PINs selected by the Customer may not consist of easily-guessed numbers (e.g. telephone number, date of birth, vehicle number plate, etc.).

3.2

The Maestro Card can no longer be used at ATMs or electronic cash terminals where input of the Maestro PIN is required when using the Card, if the Maestro PIN has been input incorrectly three times in a row. In such cases, the Customer must contact the Bank.

4. Authorisation of Card Payments

By using the Maestro Card, the Customer grants consent (authorisation) to execute payment with the card. If a Maestro PIN or signature is additionally required for this, the consent is only given upon the input of the Maestro PIN or upon signature. The Customer may no longer cancel card payment after issuing consent.

5. Refusal of Transactions by the Bank

The Bank is authorised to refuse transactions if

- i the Customer has not provided proof of identity using the Maestro PIN,
- ii the Credit Limit applicable to the Transaction, i.e. in connection with the cover obligation as per Clause 7, has been exceeded,
- iii the Maestro Card is blocked.

The Customer will be informed of this when using the Maestro Card.

6. Execution Period

Payment orders received by the Bank after 4:00 pm are deemed to have been received on the following business day in accordance with § 675n (1) sentence 1 German Civil Code (Bürgerliches Gesetzbuch BGB). The maximum execution period for the payment service to be performed is one business day.

7. The Bank's Payment Obligation, Complaints

7.1

The Bank has contractually agreed with operators of ATM and electronic cash terminals that it undertakes to pay to such operators amounts disposed of using the Maestro Card issued to the Customer.

7.2

Objections and other complaints on the part of the Customer based on the contractual relationship with the company where a cashless payment was made at an electronic cash terminal must be asserted directly against such company.

8. Customer's Entitlement to Refunds and Compensation

8.1 Refund in the case of unauthorised Transactions

In the event of an unauthorised Transaction, the Bank has no claim against the Customer for a reimbursement of its expenses. The Bank is obliged to refund the amount to the Customer immediately and without deduction. If the amount was debited from the Account, the Bank will return it to the balance it would have had but for the unauthorised Transaction.

8.2 Refund in the Case of an Authorised Transaction that was not Executed or Executed Incorrectly

(1) In the event that an authorised Transaction is not executed or is executed incorrectly, the Customer may demand a refund of the amount of the Transaction from the Bank immediately and without deduction to the extent it was not executed or executed incorrectly. If the amount was debited from the Account, the Bank will return it to the balance it would have had but for the non-executed or incorrect Transaction.

(2) Further to Paragraph (1) the Customer may demand the refund of fees and interest to the extent he or she was charged such fees or interest or to the extent such amounts were debited from his or her Account in connection with the non-executed or incorrect Transaction.

(3) If the incorrect execution consists in the card transaction being received by the creditor's payment service provider after the end of the execution period as stated in Clause II.6 (delay), the account holder's claims as set out in Paragraphs 1 and 2. If the Customer suffered a loss due to the delay, the Bank shall be liable pursuant to Clause 8.3.

(4) In the event that an authorised Transaction was not executed or executed incorrectly, the Bank shall trace the Transaction upon the Customer's request and inform the Customer of the finding.

8.3 Claims for Compensation by the Customer

In the event of an unauthorised Transaction or an authorised Transaction that was not executed or was executed incorrectly, the Customer may demand from the Bank compensation for a loss that is not already covered by Clauses 8.1 or 8.2. This does not apply in the event the Bank is not responsible for the breach of duty. In this context, the Bank is required to bear responsibility for the fault of an intermediate institution in the same manner as if it were its own fault unless the primary cause rests with an intermediate institution specified by the Customer. If the Maestro Card is used in countries outside of Germany and the European Economic Area (EEA) (third country) or in a currency of a country outside of the EEA (third country currency payment), the Bank's liability regarding the fault of an institution involved in the settlement of the payment transaction is limited to the careful selection and instruction of such an institution. If the Customer culpably contributed to the loss occurring, the extent to which the Bank and the Customer are liable for such loss is determined based on the principles of contributory negligence. Liability under this Paragraph is limited to EUR 12,500 per Transaction. The contractual limitation on liability does not apply to

- i. unauthorised Transactions,
- ii. intentional acts or gross negligence on the part of the Bank,

- iii. risks specifically assumed by the Bank and
- iv. interest costs incurred by the Customer.

8.4 Exclusion of Liability and Objections

(1) Claims against the Bank under Clauses 8.1 – 8.3 are precluded if the Customer has not informed the Bank that a Transaction was not authorised or was not executed or executed incorrectly at the latest within 13 months of the date the Account was debited. The 13month limitations period commences only if the Bank has informed the Customer of the debit posting related to the Transaction using the agreedupon communications channel at the latest within one month following the debit posting; in all other cases, the period starts on the date of notice. The Customer may also assert claims under Clause 8.3 following the expiry of the period set out in sentence. 1 if the Customer was prevented from complying with the deadline through no fault of his or her own.

(2) Claims on the part of the Customer against the Bank are precluded in cases where the circumstances giving rise to a claim

- i. relate to an unusual and unforeseeable event over which the Bank exercises no influence and the consequences of which could not have been avoided by the Bank despite the compliance with the required care, or
- ii. were brought about by the Bank on the basis of a legal obligation.

9. Customer Liability for Unauthorised Transactions

9.1 Customer Liability Prior to the Blocking Notice

(1) If the Customer loses his or her Maestro Card, if it is stolen from him or her or otherwise goes missing, and these circumstances result in unauthorised Transactions, e.g.

- i. cash withdrawals from an ATM,
- ii. use of the Maestro Card at electronic payment terminals at a retail or services company,

the Customer is liable for loss incurred prior to the Blocking Notice subject to a cap of EUR 150.00 irrespective of whether the cardholder is responsible for the card being lost, stolen or otherwise missing. Liability under Clause II 9.1 (6) (Customer liability prior to the Blocking Notice) for intentional acts or gross negligence is not affected..

(2) In the event there are unauthorised Transactions prior to the Blocking Notice where there is no loss, theft or other instance of a missing card, the Customer is liable for the resulting loss capped at EUR 150.00, if the Customer negligently breached his or her duty to keep the Maestro Card safely. Liability under Clause II 9.1 (6) (Customer liability prior to the Blocking Notice) for intentional acts or gross negligence is not affected.

(3) In the event that the Customer has not grossly neglected his or her obligations to cooperate and exercise due care, as per Clause A.II. Number 5 above, the Bank waives the Customer's share of liability capped at EUR 150.00 as per the above Paragraphs 1 and 2 and assumes all liabilities generated by unauthorised Transactions made prior to the Blocking Notice. N26 will only assume the Customer's liabilities if he or she credibly meets the conditions for release from liability and files a report with the police.

(4) The Customer is not obliged to compensate loss under Paragraphs 1 to 3, if the Customer was not able to submit a Blocking Notice because the Bank had not ensured the ability to receive the Blocking Notice and the losses were incurred as a result.

(5) In the event of unauthorised Transactions prior to the Blocking Notice and the Customer intentionally or grossly negligently infringed his/her duties of care based on these General Terms and Conditions, or acted in a fraudulent manner, the Customer is liable for the resulting loss in full. Gross negligence on the part of the Customer applies in particular if

- i. he or she did not immediately report the loss, theft or misuse to the Bank, or the central blocking hotline, on grounds for which he or she culpable,
- ii. the personal pin code was noted on the Maestro Card or was kept with the Maestro Card,
- iii. the pin code was given to another person and this resulted in misuse.

(6) Liability for losses incurred during the period to which the transaction limit relates shall be limited in each case [...] to the amount of the transaction limit specified for the card.

9.2 Liability of the Customer following the Blocking Notice

As soon as the loss or theft of the Maestro Card, misuse or other unauthorised use of the Maestro Card or Maestro PIN has been reported to the Bank or the central blocking hotline, the Bank assumes the losses caused after the notification by Transactions e.g.

- i. cash withdrawals from an ATM,
- ii. use of the Maestro Card at electronic payment terminals at a retail or services company

If the Customer acts fraudulently, the Customer is also liable for damages incurred following the Blocking Notice.

10. Transaction Statement

The Bank will inform the Customer at least once monthly of payment transactions conducted with the Maestro Card via the communication channel agreed for account information pursuant to the terms applicable to the N26 current account.

11. Blocking and Collection of the Maestro Card

11.1

The Bank may block the Maestro Card and initiate its collection (e.g. at an ATM)

- i. if it is authorised to terminate the card agreement for good cause,
- ii. if it is justified based on substantive grounds related to the security of the Maestro Card, or
- iii. if there is a suspicion of unauthorised or fraudulent use of the Maestro Card.

11.2

If possible, the Bank will inform the Customer of blocking if possible prior to, however, at the latest immediately after the blocking, including an information on the relevant grounds. The Bank will unblock the Maestro Card, or replace it with a new Maestro Card, once the grounds for the blocking no longer apply. The Bank will likewise inform the Customer of this without delay.